



Data Processing Agreement

Under RA 10173 and NPC rules

Prepared by – **iorta TechNXT**

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1. Document Control

Date	Version	Author & Business Unit Info	Reviewed By & Business Unit Info	Approved By & Business Unit Info	Change History
03 October 2026	1.0	iorta TechNXT Corp.	Legal counsel (to be completed)	To be completed	Template for discussion; subject to review by the parties' legal counsel

2. Acronyms

Acronym / Symbol	Definition / Meaning
DPA	Data Privacy Act of 2012 (RA 10173)
DPO	Data protection officer
IRR	Implementing Rules and Regulations
KYC	Know your customer
MSA	Master Services Agreement
NPC	National Privacy Commission
PIC	Personal information controller
PIP	Personal information processor
RA	Republic Act
TIN	Taxpayer identification number

3. About this template

Template for discussion; subject to review by the parties' legal counsel.

This Data Processing Agreement (the **Agreement**) governs the processing of personal data by iorta TechNXT Corp. for [Client legal name] in connection with iNXT BrokerVerse OOTB. It is the outsourcing agreement required by the Data Privacy Act of 2012 (Republic Act 10173, the **DPA**), its Implementing Rules and Regulations (the **IRR**) and the issuances of the National Privacy Commission (the **NPC**). It forms part of the Master Services Agreement (the **MSA**) and of every Order Form under which iorta TechNXT processes personal data. Text in [square brackets] is a placeholder or an option. The Parties' data protection officers should review the current NPC issuances before signature.

4. Parties and roles

4.1 Parties

This Agreement is made on [date] between:

1. **[Client legal name]**, SEC registration no. [number], with principal office at [address], represented by [name, title], whose data protection officer is [name, e-mail] (the **Controller**); and
2. **iorta TechNXT Corp.**, SEC registration no. [number], with principal office at [address], represented by [name, title], whose data protection officer is [name, e-mail] (the **Processor**).

4.2 Roles

1. The Controller is the personal information controller. It decides the purposes and means of the processing of personal data of its prospects, clients, claimants, payees, referrers and staff in iNXT BrokerVerse.
2. The Processor is a personal information processor. It processes personal data only on behalf of the Controller to provide the Services under the MSA: implementation, data migration, hosting (when it hosts), support and maintenance.
3. The cloud or data centre provider used for hosting, and any other party listed in Annex 3, is a sub-processor of the Processor.
4. Insurers, reinsurers, payment gateways and banks that receive personal data from the Controller are separate controllers or processors under the Controller's own agreements with them, and are not sub-processors of the Processor.

5. Definitions

Terms used in this Agreement such as personal information, sensitive personal information, privileged information, processing, data subject, personal information controller, personal information processor, personal data breach and security incident have the meanings given in the DPA, the IRR and NPC Circular 16-03.

Personal Data means any of those categories of information processed by the Processor under this Agreement. **Services** and other capitalised terms have the meaning given in the MSA.

6. Subject matter of the processing

The subject matter, duration, nature and purpose of the processing, the types of Personal Data and the categories of data subjects are described in Annex 1. The processing lasts for the term of the MSA and of the Order Forms, and until the Personal Data is returned or deleted under this Agreement.

7. Obligations of the Processor

7.1 Instructions

1. The Processor processes Personal Data only on the documented instructions of the Controller, including with regard to transfers outside the Philippines. The MSA, the Order Forms, this Agreement, the configuration of iNXT BrokerVerse made by the Controller and tickets raised by the Controller's named contacts are documented instructions.
2. The Processor informs the Controller immediately if, in its opinion, an instruction breaches the DPA, and may suspend that instruction until the Controller confirms or changes it.
3. If law requires the Processor to process Personal Data otherwise, it informs the Controller before processing, unless the law prohibits this.

7.2 Confidentiality

The Processor ensures that every person it authorises to process Personal Data (employees, contractors and sub-processors) is bound by a duty of confidentiality, is trained in data privacy and processes the Personal Data only as needed for the Services. This duty continues after the person leaves.

7.3 Security

The Processor implements the organisational, physical and technical security measures in Annex 2, which are designed to protect Personal Data against accidental or unlawful destruction, alteration, disclosure, loss and unauthorised processing, taking into account the nature of the Personal Data and the risks of the processing, as required by sections 20 and 21 of the DPA and the IRR. The Processor may update the measures if the level of protection is not reduced.

7.4 Sub-processors

1. The Controller gives general authorisation for the sub-processors listed in Annex 3.
2. The Processor gives the Controller at least 30 days' written notice before adding or replacing a sub-processor. The Controller may object on reasonable data protection grounds within that period. If the Parties cannot resolve the objection, the Controller may terminate the affected Services without penalty.
3. The Processor imposes on each sub-processor, by written contract, data protection obligations no less protective than this Agreement, and remains fully responsible to the Controller for the sub-processor's performance.

7.5 Assistance

Taking into account the nature of the processing, the Processor assists the Controller, by appropriate measures and at the day rates of the MSA where the assistance goes beyond what iNXT BrokerVerse provides by its own screens and exports, with:

1. responses to data subjects exercising their rights;
2. security of processing;
3. notification of personal data breaches to the NPC and to data subjects;
4. privacy impact assessments and consultations with the NPC;
5. registration of data processing systems with the NPC where required.

7.6 Records

The Processor keeps a record of the processing activities it performs for the Controller and makes it available to the Controller and, on request, to the NPC.

8. Personal data breach

8.1 Notification to the Controller

1. The Processor notifies the Controller's DPO and System Administrator of a personal data breach, or a security incident that may involve Personal Data, without undue delay and in any event within [24] hours after the Processor discovers it, and never later than 72 hours.
2. The notice contains, as far as known: the nature of the breach; the Personal Data and the data subjects concerned and their approximate number; the time of the breach and of its discovery; the likely consequences; the measures taken or proposed to contain it and to reduce its effects; and the name and contact details of the Processor's contact person. Information not yet known is provided as soon as it becomes available.

8.2 Notification to the NPC and data subjects

The Controller decides whether the breach must be notified and notifies the NPC and the affected data subjects within 72 hours of knowledge of the breach, where NPC Circular 16-03 (or its replacement) requires. The Processor does not notify the NPC or data subjects on the Controller's behalf unless the Controller instructs it in writing, except where the law directly requires the Processor to do so.

8.3 Containment and evidence

The Processor takes immediate steps to contain the breach, preserves evidence (logs, sign-in history, audit trail, monitoring data, database snapshot), assists the Controller's breach response team, and provides a written incident report within [5] Business Days of containment, with the root cause and the measures to prevent recurrence.

8.4 Costs

Each Party bears its own costs of a breach. Where the breach is caused by the Processor's breach of this Agreement, the Processor bears the reasonable costs of notification and of the measures required by the NPC, within the liability provisions of the MSA as they apply to this Agreement.

9. Data subject requests

1. The Processor forwards to the Controller, within 2 Business Days, any request it receives directly from a data subject concerning Personal Data, and does not answer it except on the Controller's instructions.
2. The Controller handles requests to be informed, to access, to object, to erasure or blocking, to rectification, to data portability and to damages and complaints. iNXT BrokerVerse supports access and portability through its reports and exports, and rectification through the client and lead screens, with every change recorded in the audit trail.
3. Erasure that cannot be performed through the screens (for example anonymisation of records after the retention period) is performed by the Processor as a reviewed database procedure on the Controller's written instruction.

10. Audits

1. The Processor makes available to the Controller the information needed to demonstrate compliance with this Agreement, including its policies, the summary of its yearly penetration test and the certifications of its hosting sub-processor.
2. The Controller, or an independent auditor bound by confidentiality and approved by the Processor (approval not to be unreasonably withheld), may audit the Processor's compliance once a year, on 30 days' written notice, during business hours, at the Controller's cost, and without access to other customers' data. Additional audits are allowed after a personal data breach or when the NPC requires.
3. The Processor cooperates with any inspection or compliance check by the NPC.
4. The Processor corrects any non-compliance found within an agreed period.

11. Transfers outside the Philippines

1. The Processor stores and processes Personal Data only in the location stated in the Order Form: [Singapore (AWS ap-southeast-1 or Azure Southeast Asia) / the Philippines (local partner)].
2. Where the location is outside the Philippines, the Controller confirms that it has decided on the transfer, documented it in its privacy notice and processing records, and assessed it in a privacy impact assessment. The Controller remains accountable for the transfer under section 21 of the DPA; the Processor provides comparable protection through this Agreement and the sub-processor's data processing terms.
3. Remote access by the Processor's support staff is allowed from [the Philippines / list of countries], only to perform the Services.
4. The Processor does not transfer Personal Data to any other country without the Controller's prior written consent.

12. Return and deletion

1. On expiry or termination of the Services, the Processor, at the Controller's choice, returns all Personal Data to the Controller in the formats stated in the Software Subscription Agreement or the Hosting and Infrastructure Services Agreement, and then deletes it, or deletes it.
2. Deletion from production and non-production environments takes place within 30 days after the Controller confirms the return, or 60 days after expiry or termination if the Controller makes no request.
3. Personal Data in backups is deleted when the backups expire under the retention in the Hosting and Infrastructure Services Agreement and is not restored in the meantime except to comply with law.
4. The Processor gives the Controller a certificate of deletion signed by its DPO.
5. The Processor may keep Personal Data only where Philippine law requires it, in which case it keeps it confidential, protected and used only for that legal purpose.

13. Controller obligations

The Controller:

1. ensures it has a lawful basis for the processing and gives data subjects the information the DPA requires, including about the Processor and any transfer outside the Philippines;
2. appoints a DPO and registers its data processing systems with the NPC where required;
3. gives only lawful instructions and configures iNXT BrokerVerse (roles, two-step verification, retention settings) in line with its privacy management programme;
4. does not send Personal Data to the Processor beyond what the Services need (for example, covers client personal data in screenshots attached to tickets);
5. manages consent and marketing opt-outs, which iNXT BrokerVerse OOTB does not record in a dedicated field.

14. Liability and term

1. Liability under this Agreement is governed by the Limitation of liability clause of the MSA, including any specific cap for data protection stated there.
2. This Agreement starts on the date of the first Order Form under which the Processor processes Personal Data and ends when the Processor no longer holds any Personal Data of the Controller. The obligations on confidentiality, return and deletion survive.
3. If this Agreement conflicts with the MSA or an Order Form on the processing of Personal Data, this Agreement prevails.
4. This Agreement is governed by Philippine law. Disputes are resolved under the Dispute resolution clause of the MSA, without prejudice to the powers of the NPC.

15. Signatures

For [Client legal name] (Controller)	For iorta TechNXT Corp. (Processor)
Signature: _____	Signature: _____
Name: [name]	Name: [name]
Title: [title]	Title: [title]
Date: [date]	Date: [date]
DPO: [name]	DPO: [name]

16. Annex 1: description of the processing

16.1 Purpose and nature

Item	Description
Purpose	Provision of iNXT BrokerVerse OOTB to the Controller for its business as an insurance broker: implementation and data migration, hosting (where the Processor hosts), support and maintenance
Nature of processing	Collection by upload and migration, recording, organisation, storage, retrieval, consultation, use, correction, backup, restore, export, transfer to the hosting location, erasure and destruction
Duration	Term of the MSA and Order Forms, and until return or deletion
Frequency	Continuous where the Processor hosts; occasional for support and data migration where the Controller hosts

16.2 Data subjects and Personal Data

Data subjects	Personal Data	Sensitive personal information
Leads and prospects	Name, company, e-mail, phone, birth date, gender, address	Birth date (age) where captured
Clients (insured persons and company contacts)	Name, e-mail, phone, TIN, birth date, gender, address, credit limit	TIN; birth date
Insured risks	Vehicle plate, chassis and engine numbers; property locations	No
KYC	Government ID type and number (PhilSys ID, UMID, passport, driver's licence and others), ID image	Government-issued identifiers
Claimants and payees	Loss details, description, settlement amounts, payee and bank details, claim documents and photos	Health information in accident or injury claims
Payments	Payment references, amounts, gateway notifications (no card numbers)	No
Referrers and sub-agents	Name, bank account, withholding tax data	TIN
Staff users of the Controller	Name, username, e-mail, roles, sign-in history with IP address and browser	No

17. Annex 2: security measures

17.1 Organisational

- A DPO and a data privacy and security policy; privacy training for all staff with access to Personal Data, at least yearly.
- Confidentiality undertakings for staff and contractors.
- Access to production Personal Data only for named support and operations staff who need it, under change and ticket control.
- Incident and breach response procedure with defined roles and timelines.
- Production Personal Data is not copied to development or test environments without masking.

17.2 Physical

- Hosting in data centres of providers with independent certification (ISO/IEC 27001 or equivalent), or, for a local partner, evidence of physical security, power and cooling redundancy.
- Offices of the Processor with controlled access; clear desk and screen policy.

17.3 Technical (application)

- Named user accounts; passwords of at least 8 characters with four character classes, a 5-password history, 90-day age and lockout after 5 failed attempts; idle sign-out after 30 minutes.
- Two-step verification (time-based one-time codes), compulsory for the roles the Controller sets.
- Seven roles with read and write permissions, deny by default, checked by the server on every action; maker-checker approvals, authority matrix and segregation of duties checks.
- Audit trail of every create, update, approval, report run and sign-in, with before and after values.
- Documents served only to signed-in users or through signed links that expire; upload types checked against file content.
- Passwords hashed; two-step secrets encrypted at rest; passwords and tokens redacted from logs.

17.4 Technical (infrastructure, where the Processor hosts)

- Encryption in transit (HTTPS, TLS to the database) and at rest (database, file store, backups).
- Network zones with private application and data zones; WAF; administrator access with multi-factor sign-in, logged.
- Secrets in a secret store, separate per environment, with a sealed escrow copy of the data encryption key under dual control.

- Daily backups with point-in-time recovery, restore tests quarterly, and the retention and recovery objectives of the Hosting and Infrastructure Services Agreement.
- Monitoring and alarms, including on failed sign-ins and token reuse; patching monthly and critical patches within [7] days; yearly independent penetration test.

18. Annex 3: authorised sub-processors

Sub-processor	Service	Location of processing	Applies to
[Amazon Web Services, Inc. or its Philippine or Singapore contracting entity]	Cloud hosting (option A)	Singapore (ap-southeast-1)	Hosting by the Processor on AWS
[Microsoft Corporation or its contracting entity]	Cloud hosting (option B)	Singapore (Southeast Asia)	Hosting by the Processor on Azure
[Local partner name]	Data centre hosting (option C)	[city], Philippines	Hosting by the Processor with a local partner
[E-mail delivery provider, if the Processor provides the mailbox]	Outgoing e-mail	[location]	Only if the Controller does not provide its own SMTP mailbox
[Support tooling provider]	Ticketing and service desk	[location]	Tickets (Controller to cover personal data in attachments)

Only the sub-processors that apply to the hosting option and services in the Order Form are authorised. The list is kept up to date under the Sub-processors clause.

19. Document Sign-Off

Serial Number	Description	Owner	Status
1	Review and completion by the parties' legal counsel and data protection officers before signature	iorta TechNXT	Closed

Sign Off Date	Signature	Approved By	Department & Project Role



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